

CV-25-009145 VARGAS, JOSEPH vs PAIONI, WILLIAM - Defendant William Paioni's Motion to Quash Service of Summons Pursuant to CCP 418.10 - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return. (Evid. Code § 647). Even if the Court were to find that that Plaintiff has discharged its burden of demonstrating statutorily compliant effective service of its Writ of Summons and Complaint herein upon Defendant herein, the effect of a notice of motion to quash service of process is to place upon the plaintiff the burden of proving facts that gave the court jurisdiction, that is, facts requisite to an effective service. (Code of Civ Procedure sections 415.10 and 415.20; Coulston v Cooper (1966) 245 Cal.App.2d 866). Furthermore, a party's declaration of non-service, if credited by the trial court, can rebut the presumption of proper service established by the return of a registered process server. (Fernandes v. Singh, (2017), 16 Cal. App. 5th 932 as modified on denial of reh'g (Nov. 2, 2017) The Court finds Defendant' declaration in conjunction with Plaintiff's concession that the Writ of Summons and Complaint were served upon Defendant's estranged wife sufficient to rebut the presumption of service. (Fernandes v. Singh, (2017), 16 Cal. App. 5th 932 as modified on denial of reh'g (Nov. 2, 2017); American Express Centurion Bank v. Zara App. (2011) 199 Cal.App.4th 38). Additionally, assuming that actual notice could amount to valid service based on a finding of substantial compliance over a Defendant's objection that service did not comply with statutory requirements, in view of the fact that the record does not show partial or colorable compliance with the requirement of service on Defendant at his "dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age" the Court finds ineffective service herein and that the court therefore lacks jurisdiction over Defendant. (Civ. Proc. Code §§ 415.10 and 415.20; American Express Centurion Bank v. Zara, supra, at p. 391). Defendant's motion is therefore granted. The purported service of Plaintiff's Writ of Summons and Complaint on Defendant William Paioni is hereby quashed. (Civ. Proc. Code § 418.10) Plaintiff's Request for Judicial Notice is granted. (Evidence Code § 452 (d)). The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no tentative rulings in Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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